Document: Statement of Work v3.1 · **Effective:** July 6, 2026 · **Status:** Ready for execution

Statement of Work (SOW)

Catfish King Operational Portal

Client: Great American Foods (Catfish King)
Client Contact: Clay Conditt, Executive Vice President
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SOW Version: 3.1
Effective Period: Upon execution through Phase 4 completion and any post-build support period

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1. Definitions

"Acceptance" — Client's written confirmation that deliverables meet Acceptance Criteria specified in Section 4.

"Deliverable" — A tangible work product produced by Contractor and delivered to Client, as specified in Section 3.

"Phase" — A discrete project stage with defined deliverables, timeline, and payment (Sections 6-9).

"Intellectual Property" or "IP" — All code, documentation, designs, databases, and materials created under this SOW.

"Business Day" — Monday through Friday, excluding federal holidays observed in Texas.

"Confidential Information" — Non-public business data, including but not limited to sales figures, employee information, and operational procedures.

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2. Project Overview

2.1 Background

Client operates 11 Catfish King restaurant locations across Texas, Louisiana, and Oklahoma. For 15+ years, Client has relied on DataCache, a third-party SaaS POS reporting system, which requires manual email-based reporting and lacks real-time visibility.

2.2 Objective

Contractor shall design, develop, and deliver a unified operational portal (the "Platform") that replaces DataCache with an owned system, enabling: - Real-time operational reporting across all 11 locations - Automated data aggregation and auto-population between modules - Document management for HR, invoices, and operational files - Export capabilities matching DataCache format

2.3 Philosophy

Per Client directive: **"The simpler the better."** Platform shall prioritize ease of use over feature complexity, maintaining familiarity with existing DataCache workflows.

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3. Scope of Work

3.1 In Scope (All Phases)

Module	Description	Deliverables
Daily Sales Report	35-field POS reconciliation	Form, validation, auto-calculation, storage
Daily Operations Log	8-sheet operational tracking	Position charts, labor tracking, duty lists
Weekly Inventory	COGS tracking by category	Fish, Meats, Plate Items, Other calculations
Daily Cash Audit	Multi-register cash tracking	Opening, Drawer, Mid, Closing audits
Labor & Projections	Weekly labor budgeting	Projected vs. actual hours and costs
Manager Schedule	4-week rolling schedule	Grid-based manager scheduling
Employee Schedule	Weekly employee schedules	Front/Kitchen staff scheduling
Transmittals	Invoice/expense tracking	13-category expense logging
District Manager Report	Corporate rollup view	Consolidated multi-store analytics
Document Management	File upload/organization	Folder structure, upload/download, permissions

3.2 Technical Architecture

- **Backend:** Python Flask
- **Database:** PostgreSQL (production) or SQLite (development)
- **Frontend:** HTML + Tailwind CSS
- **Hosting:** Client-provided VPS (DigitalOcean or Hetzner recommended) — Client owns the account directly
- **File Storage:** S3-compatible (Backblaze B2 recommended) — Client owns the bucket
- **Source Code:** GitHub repository under Client's account (or Contractor's account, transferred to Client upon final payment)

3.3 Out of Scope (Requires Change Request)

- POS hardware integration
- Payment processing
- Mobile native apps (iOS/Android)
- AI/ML features beyond basic auto-calculations
- Integration with third-party systems (accounting, payroll)
- Data migration from systems other than DataCache
- Training beyond Phase 4 deliverables

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4. Acceptance Criteria

4.1 General Criteria

All deliverables must meet the following minimum standards: - [ ] Free of critical defects (crash, data loss, security vulnerability) - [ ] Functions as specified in requirements documentation - [ ] Compatible with Chrome, Firefox, Safari (latest 2 versions) - [ ] Responsive on tablet devices (primary manager interface) - [ ] Performance: Page load < 2 seconds, form submission < 1 second

4.2 Phase-Specific Criteria

See Sections 6-9 for detailed acceptance criteria per Phase.

4.3 Acceptance Process

1. Contractor delivers Phase deliverables ("Delivery")
2. Client has **5 Business Days** to review and test
3. Client provides written Acceptance or lists Defects
4. If Defects listed, Contractor has **5 Business Days** to remedy
5. Acceptance deemed given if Client fails to respond within 5 Business Days

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5. Intellectual Property & Ownership

5.1 IP Assignment

Upon full payment for each Phase, Contractor hereby assigns to Client all right, title, and interest in: - All source code developed for the Platform - Database schemas and designs - Documentation and user guides - UI/UX designs and assets

Explicit Assignment: This assignment is made under 17 U.S.C. § 204 and is effective upon full payment. Software does not qualify as "work-made-for-hire" under 17 U.S.C. § 101.

5.2 Pre-Existing IP

Contractor retains ownership of: - General code libraries and frameworks authored by Contractor (not specific to Client's business logic) - Tools, utilities, and development infrastructure not specific to Client's business logic

Third-party open-source components (Flask, PostgreSQL driver, bcrypt, gunicorn, etc.) are not owned by Contractor. They are subject to their respective open-source licenses (MIT, BSD, Apache 2.0, etc.) and are listed in the **Software Bill of Materials (SBOM)** delivered to Client at project completion. Client receives a perpetual, royalty-free license to use these components per their open-source terms.

5.3 License During Development

Contractor grants Client a non-exclusive, royalty-free license to use deliverables during development and testing, revocable upon termination for cause.

5.4 AI Disclosure

Contractor may use AI-assisted development tools (code completion, documentation generation). All AI-generated code is reviewed for correctness and security. Client acknowledges that AI-assisted development does not affect ownership rights under Section 5.1.

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6. Phase 1: Foundation

6.1 Description

Core platform with Daily Sales Report, authentication, and basic dashboards. Validates approach before full build.

6.2 Deliverables

- [ ] Database schema (16 tables: core + Daily Sales)
- [ ] Authentication system (bcrypt, role-based access)
- [ ] Daily Sales Report form (35 fields, DataCache format)
- [ ] Auto-calculation logic (totals, percentages)
- [ ] Store dashboard (recent entries, basic charts)
- [ ] Corporate dashboard (overview, All Locations tab)
- [ ] **Excel export** (matching DataCache format)
- [ ] **PDF export** (professional report format)
- [ ] **Date range picker** (custom start/end dates)

6.3 Timeline

3 weeks from execution and receipt of deposit.

6.4 Acceptance Criteria

- Manager can enter Daily Sales Report in < 5 minutes
- Form auto-calculates totals correctly
- Corporate can view real-time submissions
- Excel export opens correctly in Excel/Google Sheets
- Date range filtering returns correct data

6.5 Investment

$9,500 (fixed price)

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7. Phase 2: Operations Suite

7.1 Description

Consolidate daily/weekly operational files: Daily Log, Inventory, Cash Audit, Labor, and Schedules.

7.2 Deliverables

- [ ] Daily Log module (8 sheets as tabs)
- [ ] Weekly Inventory module with COGS calculations
- [ ] Daily Cash Audit module (4 audit types)
- [ ] Labor Projection vs. Actual tracking
- [ ] Manager Schedule (4-week view)
- [ ] Employee Schedule module
- [ ] **Auto-population logic** (Net Sales flows to Labor, Inventory, Daily Log)

7.3 Timeline

4 weeks from Phase 1 Acceptance.

7.4 Acceptance Criteria

- Auto-population works seamlessly (no manual re-entry)
- Daily Log covers all 8 sheets from Clay's template
- Weekly Inventory calculates COGS correctly
- Cash Audit matches existing process

7.5 Investment

$4,500 (fixed price, contingent on Phase 1 Acceptance)

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8. Phase 3: Corporate Dashboard + Documents

8.1 Description

Full visibility and document management.

8.2 Deliverables

- [ ] District Manager Report (consolidated view)
- [ ] Transmittals module (13 expense categories)
- [ ] Document upload system with folder structure
- [ ] Disciplinary, New Hire, Invoice folders
- [ ] File versioning and download
- [ ] Corporate "Store Switcher" interface

8.3 Timeline

3 weeks from Phase 2 Acceptance.

8.4 Acceptance Criteria

- District Manager Report auto-generates from store data
- Document upload works for files up to 50MB
- File download with access logging

- All 10 modules functional

8.5 Investment

$3,500 (fixed price, contingent on Phase 2 Acceptance)

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9. Phase 4: Migration + Rollout

9.1 Description

Complete transition from DataCache to new Platform.

9.2 Deliverables

- [ ] Import up to 2 years historical DataCache monthly data
- [ ] Data validation and reconciliation report
- [ ] Multi-store deployment (11 locations)
- [ ] Manager training materials (document)
- [ ] Technical documentation
- [ ] Ownership handover

9.3 Timeline

2 weeks from Phase 3 Acceptance.

9.4 Acceptance Criteria

- 11 stores using system for daily reporting
- Historical data migrated and accessible
- Zero DataCache dependency

9.5 Investment

$2,500 (fixed price, contingent on Phase 3 Acceptance)

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10. Total Investment

Phase	Description	Amount	Timing
Phase 1	Foundation	$9,500	Upon execution
Phase 2	Operations Suite	$4,500	Upon Phase 1 Acceptance
Phase 3	Corporate + Documents	$3,500	Upon Phase 2 Acceptance
Phase 4	Migration + Rollout	$2,500	Upon Phase 3 Acceptance
TOTAL		**$20,000**	

Alternative: Client may elect Phase 1 only ($9,500) with option to proceed with Phases 2-4.

10.1 Post-Build Support Structure

Support is structured to give Client a clear handoff and predictable ongoing costs:

During the build (Phases 1–4, ~12 weeks): All support is included in the fixed $20,000 build price. This includes debugging, small UI adjustments, minor changes, and unlimited Q&A related to the build.

First month after Phase 4 delivery: Free. Onboarding, training, manager questions, settling-in issues — all included at no charge.

Month 2 onward (post-build): $150/month flat support retainer, billed monthly. Includes: - Bug fixes (in original scope) - Small UI changes (colors, layout, copy, field labels, form order, adding single fields) - Minor tweaks (small report or validation adjustments) - Security updates and patches - Login problems, password resets, new user setup - Backup monitoring and verification - Server administration (OS updates, SSL renewal, firewall, monitoring) - Email support with 1 Business Day response

Infrastructure costs (paid by Client directly to providers, not through Contractor): ~$50/month total, including: - Server (VPS at DigitalOcean or Hetzner): ~$24/month - File & document storage (Backblaze B2): ~$20/month - Email notifications (Postmark or Amazon SES): ~$5/month - Domain registration: ~$15/year

Client owns and pays providers directly for all infrastructure accounts (recommended setup). Contractor has delegated admin access during build and support period, revocable by Client at any time.

Cancellation: Either party may cancel the monthly support retainer with **30 days written notice**. No long-term contract required.

Excluded from the $150/month retainer (handled as separate Change Request or hourly billing): - Major incidents outside business hours (24/7 incident response available as optional add-on at ~$200/month) - New features, new modules, new report types (per Change Request process, Section 12) - Pre-30-day backup recovery (billable at standard hourly rate) - Server hardware upgrades (billed by hosting provider directly to Client)

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11. Payment Terms

11.1 Payment Schedule

Milestone	Amount	Due
Phase 1 Deposit	$4,750 (50%)	Upon SOW execution
Phase 1 Balance	$4,750 (50%)	Upon Phase 1 Acceptance
Phase 2	$4,500	Upon Phase 2 Acceptance
Phase 3	$3,500	Upon Phase 3 Acceptance
Phase 4	$2,500	Upon Phase 4 Acceptance

11.2 Payment Method

- ACH transfer preferred
- Check acceptable
- Credit card: +3% processing fee

11.3 Late Payment

Invoices unpaid after **30 days** incur **1.5% monthly service charge**. Contractor may suspend work after **60 days** unpaid, with written notice.

11.4 Post-Build Support Retainer Billing

- **First month after Phase 4 delivery:** No charge (free onboarding and training period)
- **Month 2 onward:** $150/month flat retainer, billed on the 1st of each month
- **Invoiced separately** from any build-phase payments
- **Infrastructure costs** (VPS, storage, email, domain) are paid by Client directly to providers and are not invoiced by Contractor
- **Cancellation:** Either party may cancel with 30 days written notice; no long-term contract required

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12. Change Management

12.1 Change Request Process

Any material change to scope requires a written Change Request (CR): 1. Client submits CR describing requested change 2. Contractor assesses impact (timeline/cost) within 3 Business Days 3. Parties agree to amendment or CR is rejected 4. No work begins on CR until signed amendment

12.2 What Constitutes a Change

- New features not in Section 3.1
- Additional stores beyond 11
- Additional data sources beyond DataCache
- Custom integrations with third-party systems

12.3 What Does NOT Constitute a Change

- Bug fixes (errors in delivered functionality)
- Small UI adjustments (colors, fonts, layout, copy, field labels, form order)
- Adding single fields or reordering existing fields
- Performance optimizations
- Security patches
- Minor tweaks to existing reports, validations, or dashboard widgets
- Server administration (OS updates, SSL renewal, firewall config)

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13. Confidentiality & Data Protection

13.1 Confidentiality

Contractor acknowledges access to Client's Confidential Information (sales data, employee info, operational procedures). Contractor shall: - Use information solely for SOW performance - Not disclose to third parties - Maintain security appropriate to data sensitivity - Return or destroy all data upon termination

13.2 Data Security

- Database encrypted at rest (where supported by hosting)
- Passwords hashed with bcrypt
- HTTPS/TLS for all communications
- Audit logging of all data access
- Backups retained for 30 days

13.3 Restaurant Data

Platform will store sales figures, employee schedules, and operational data. Contractor complies with applicable data protection laws but notes this is not PCI-DSS (payment processing) scope.

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14. Termination

14.1 Termination for Convenience

Either party may terminate with **30 days written notice**. Client pays for: - All completed and Accepted deliverables - Work in progress (billed at $100/hr) - Non-refundable deposit if within 5 Business Days of execution

14.2 Termination for Cause

Either party may terminate immediately upon material breach, if uncured after **10 Business Days** written notice. Material breach includes: - Failure to pay amounts due - Failure to deliver per Acceptance Criteria - Unauthorized disclosure of Confidential Information

14.3 Effect of Termination

- Client receives all work product created to date
- If IP not yet assigned (payment not complete), Client receives license to use
- Transition assistance provided per Section 15.3

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15. Warranties & Remedies

15.1 Warranty

Contractor warrants that for **90 days** after Acceptance: - Deliverables substantially conform to Acceptance Criteria - No malicious code or security backdoors - Does not infringe third-party IP rights

15.2 Remedy

For breach of warranty, Contractor shall: - Correct defects at no additional charge, OR - Refund amounts paid for non-conforming deliverables

15.3 Transition Assistance

Upon any termination, Contractor provides **30 days** transition assistance: - Knowledge transfer documentation - Source code handover - Credentials transfer - 2 hours video call support

16. Limitation of Liability

16.1 Cap on Liability

Contractor's total liability under this SOW shall not exceed **total amounts paid by Client** under this SOW.

16.2 Excluded Damages

Neither party liable for: - Indirect, incidental, consequential damages - Lost profits, lost revenue, business interruption - Damages exceeding amounts stated in Section 16.1

16.3 Exceptions

Limitation does not apply to: - Breach of confidentiality obligations - Willful misconduct or gross negligence - IP indemnification obligations

17. Governing Law & Dispute Resolution

17.1 Governing Law

This SOW governed by laws of **State of Texas**, without regard to conflict of laws principles.

17.2 Dispute Resolution

Parties agree to: 1. **Good faith negotiation** (15 Business Days) 2. **Mediation** (if negotiation fails) — shared costs 3. **Litigation** in courts of Travis County, Texas (if mediation fails)

17.3 Prevailing Party

Prevailing party in dispute entitled to reasonable attorneys' fees and costs.

18. General Provisions

18.1 Entire Agreement

This SOW constitutes entire agreement, superseding all prior communications.

18.2 Amendments

Amendments must be in writing, signed by both parties.

18.3 Assignment

Neither party may assign without written consent. Assignment to successor entity (merger/acquisition) permitted with notice.

18.4 Force Majeure

Neither party liable for delays due to causes beyond reasonable control (natural disasters, pandemic, etc.).

18.5 Severability

If any provision unenforceable, remainder remains in effect.

18.6 Notices

All notices to addresses/emails in header. Email sufficient for non-legal notices.

18.7 Independent Contractor

Contractor is independent contractor, not employee. No benefits, tax withholding, or agency authority.

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19. Signatures

By signing below or replying "APPROVED" via email, both parties agree to the terms herein.

IN WITNESS WHEREOF, parties execute this Statement of Work as of the date first written above.

CONTRACTOR:

Piney Digital

By: _____ **Name: Joel Escoto Title: Architect Date: _____**

Email acceptance: Reply "APPROVED" to joel@pineydigital.com with name and date

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CLIENT:

Great American Foods (Catfish King)

By: _____ **Name: Clay Conditt Title: Executive Vice President Date: _____**

Email acceptance: Reply "APPROVED" from clay@greatamericanfoods.com (or similar corporate email)

APPENDIX A: Deliverables Reference

All files to be delivered via: - GitHub repository access - Deployed application URL - Documentation (PDF)

Repository: `pineywoodsservicesinfo-oss/catfishking-dashboard`

Key Files: - `database_schema.sql` — Complete database schema - `app.py` — Flask application - `templates/` — HTML templates - `storage/` — File storage directory - `docs/` — Technical documentation

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APPENDIX B: Open Questions (for Client)

Pending clarification: 1. Are shift times standardized (2PM/4PM) across all stores? 2. Do all 11 locations have drive-thrus? 3. Are there always exactly 3 deposit fields? 4. Wage rates — per store or per employee? 5. Inventory unit prices — who provides standard costs? 6. Special Duty Lists — standardized or per-store? 7. Do uploaded documents need approval workflow? 8. Can Client export 2 years of DataCache data?

Document Control: - Version 1.0 — June 10, 2026 — Initial scope - Version 2.0 — June 18, 2026 — Added all 10 modules - Version 3.0 — June 22, 2026 — Final with legal terms, IP provisions, acceptance criteria - **Version 3.1 — July 6, 2026 — Updated Section 3.2 (Technical Architecture — VPS ownership model), Section 5.2 (Pre-Existing IP — clarified SBOM scope), Section 10.1 (Post-Build Support Structure — 1 free month, then $150/month retainer), Section 11.4 (Post-Build Retainer Billing), Section 12.3 (What does NOT constitute a Change — small UI changes)**

END OF STATEMENT OF WORK